

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 94283-0001

JUN 28 2018

Honorable Randolph Rice
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113



Re: Lean, Noe
CDC No.: F76404
Case No.: CC641562
Date of Sentence: June 8, 2007

Dear Honorable Randolph Rice:

The purpose of this letter is to provide the court with authority to resentence Noe Lean pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Lean was sentenced in 2007, and was convicted of section 245, subdivision (a)(1), Assault with a deadly weapon. The trial court sentenced inmate Lean on June 8, 2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Lean's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Lean's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A handwritten signature in black ink, appearing to read "Scott Kernan", is written over a horizontal line.

SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Complaint

cc: Honorable Patricia M. Lucas, Santa Clara County Presiding Judge
Santa Clara District Attorney
Private Attorney

F 76404

F76404

1/5/07

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SANTA CLARA - HALL OF JUSTICE			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Noe Leon		DOB: 09-09-82	CASE NUMBER CC641562
AKA: CII#: A12485450 BOOKING #: 06524384 PFN: DSJ367		☐ NOT PRESENT	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT	
DATE OF HEARING 06-08-07	DEPT. NO. 24	JUDGE Randolf Rice	
CLERK J. Molloy	REPORTER L. Moseley	PROBATION NO. OR PROBATION OFFICER M. Kurzenknabe ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE D. Ezgar		COUNSEL FOR DEFENDANT R. Munoz ☐ APPTD.	

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	JURY	COURT	REA	TERM (L.M.U)	TIME IMPOSED
1	PC	245(a)(1)	Assault with a deadly weapon	2005	03-01-07			X	M	3 YRS. 0 MOS.

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
1	PC12022.7(a)	3	PC186.22(b)(1)(C)	10					13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes). ☐ PC1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment) Defendant was ordered to report to Local Parole upon release.

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments): ☒ Court Security Fee of \$20

Restitution Fine(s): \$3,200 per PC 1202.4(b) forthwith per PC 2085.5; \$3,200 per PC 1202.45 suspended unless parole is revoked.

Restitution per PC 1202.4(f): ☒ \$GEN / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7 below.)

Fine(s): \$_____ + _____ PA per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Lab Fee: \$_____ + _____ PA per HS 11372.5(a) for counts _____. ☐ Drug Program Fee of \$150 + _____ PA per HS 11372.7(a).

6. TESTING: a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☒ Compliance with PC296 verified d. ☐ other (specify):

7. Other orders (specify): Advised of 3 years Parole/Appeal Rights. Register PC186.30 and PC186.32. PC12021 ordered -lifetime. Probation denied. Destroy weapon PC12028.

8. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 16 0

9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

a. ☒ at initial sentencing hearing.

b. ☐ at resentencing per decision on appeal.

c. ☐ after revocation of probation.

d. ☐ at resentencing per recall of commitment. (PC 1170(d).)

e. ☐ other (specify):

11.	DATE SENTENCE PRONOUNCED 06-08-07	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 239 INCLUDING:	ACTUAL LOCAL TIME 208	LOCAL CONDUCT CREDITS 31	☐ 4019 ☒ 2933.1	TIME SERVED IN STATE INSTITUTION.	DMH	CDC	CRC
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12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

Peaklika Van

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

JUN 19 2007

11 SUPERIOR COURT
190 W. HEDDING ST.
SAN JOSE, CA 95110

CASE NO. CC641562
CEN 06524384

PEOPLE VS. NDE LEDN
L.K.A. 306 HANNAH ST
SAN JOSE, CA 95126
JUDGE HON. RANDOLF RICE
REPORTER L. MOSELEY
DEF. ATTY. MUNOZ
CHARGES F(001)PC245(A)(1)

DATE 06/08/2007 8:55 AM
09/09/1982 CAD3102355 CDY BK:IN
CLERK J. MOLLOY DSJ367 M
HEARING PROBATION AND SENTENCING
DV: AGENCY SJ-04313-3333 -ALFONZO
CHILD: STATUS I-SET -500000 TW ?
APO M. KURZENKNAB

VIOLATION DATE
06/04/2005

NEXT APPEARANCE

☒ Delendant Present ☐ Not Present ☒ Atty Present R. MUNOZ AD / PD / Legal Aide / Special App

☐ Arr'd ☐ Adv ☒ Arr Wav ☐ Amend Comp/Info ☐ Arr ☐ Plea ☐ IDC ☐ PTC ☐ Prob / Sent ☐ Interpreter ☐ Sworn

☐ PC977 ☐ Filed ☐ On File ☐ Repr. Adv / Wav ☐ Bail/ OR/ SORP ☐ Rect Dr Rpt ☐ FAR/ ERC ☐ Bail Apply ☐ Balance Exonerated

☐ NG ☐ Entered by CRT ☐ NGBRI / Adv ☐ PSet ☐ Prelim ☐ Readiness ☐ S / B MTC ☐ Bail Exonerated ☐ Forfeited Bond #

☐ Denies Priors/ Allegations/ Enhancements/Refusal ☐ Further ☐ Jury ☐ CT ☐ Peo / Def Wav Jury ☐ Reassumption Filed ☐ Forfeiture Set Aside ☐ Bail Rein

☐ TW ☐ TNW ☐ TW / WD ☐ TW Sentence ☐ Ref'd ☐ \$ Costs Within 30 Days to Court

☐ Ref / Appt PD / AD / Legal Aide ☐ Conflict Decl ☐ APO / Prop 36 ☐ P36 Re-Assm't ☐ SORP / OR ☐ Revoked ☐ Reinstated ☐ May Post & Forfeit

☐ Relieved ☐ Appt'd ☐ Crim Proc Susp ☐ Rein ☐ BW Ordered \$ ☐ Stayed ☐ To Issue

☐ Hrg on Motion ☐ Doubt Decl Pursuant PC 1368 ☐ No Cite Release/SCIT ☐ No Request ☐ Cash Only

☐ Granted ☐ Denied ☐ Submitted ☐ Off Cal ☐ Subm on Report ☐ Found ☐ BW Set Aside ☐ Recalled ☐ Filed

☐ Stip to Comm ☐ Drs. Appointed ☐ Max Term ☐ Committed ☐ Proof of

☐ Prelim Wav ☐ Certified to General Jurisdiction ☐ MDA / COM Amended to

☐ Amended to ☐ (M) VC12500(a) / VC23103(a) ☐ Pur VC23103.5 ☐ DA Stmt Filed Other:

PLEA Conditions: ☐ None ☐ No State Prison ☐ PC17 after 1 Yr Prob ☐ Includes VOP ☐ Add to Cal

☐ Jail / Prison Term of ☐ Dismissal / Striking ☐ Subm time of Sent ☐ Harvey Stip

☐ Adv ☐ Max Pen ☐ Parole/Prob ☐ Appeal ☐ Immig ☒ Reg PC290/HS11590/PC457.1 ☐ PC186.30 ☐ Future Serious Felony ☐ PC1202.1 ☐ PC14607.8/PC666

☐ Wav Right to ☐ Counsel ☐ Court / Jury Trial ☐ Subpoena / Confront / Examine Witnesses ☐ Self-incrimination ☐ Written Waiver filed ☐ Plea / Absentia filed

☐ COP ☐ GUILTY ☐ NOLO CONTENDERE to charges & admits enhancements / allegations / priors ☐ PC17 ☐ Arbuckle ☐ Factual Basis found ☐ Findings stated

☐ Prop 36 Granted / Unamenable / Refused / Term ☐ DEJ Eligibility Filed ☐ DEJ Granted / Rein / Term Fee \$ ☐ Guilty Plea Rendered

☐ Waives Referral ☐ Ref'd to APO Full Rpt ☒ PROBATION DENIED

☐ Sentenced to State Prison/County Jail ☐ Sent Suspended

PROBATION ☐ Execution ☐ Imposition of sentence suspended for probation period

☐ COURT ☐ FORMAL PROBATION GRANTED for Days / Mos / Yrs

☐ Report to APO within Days ☐ Terminated ☐ Upon Release

☐ Perform Hrs Volunteer Work as directed PO / SAP / CAP ☐ in lieu of fine

☐ Not drive w/o valid DL & Ins ☐ Adv VC23600 ☐ HTO ☐ Delete FOP/MOP

☐ MOP ☐ FOP ☐ 12 hrs ☐ 3 mos ☐ 6 mos Enroll within days

☐ DL Susp/ Restr'd/ Rvk'd for ☐ To, from, during Work/AlcoPrg/Jail/Sch/App

☐ IID Not/Ordered/ Rmv'd Term Yrs ☐ DSA thru APO / DOR / CRT ☐ Filed

☐ No contact with victim or family / co-defts unless appr by APO ☐ PC1202.05

☐ DVPO issued / mod / term'd Exp ☐ Victim Present

☐ Not own/possess deadly weapons ☒ Destroy / Return Weapon

☐ Submit Search/Testing ☐ Educ/Voc Trng/Empl ☐ No alcohol / drugs or where sold

☐ Substance Abuse, DV, Psych, Parenting, Anger Mgmt, Theft cnsl / prgm

☒ PC296 (DNA) ☐ PC1202.1 HIV Test / Education

VOP: ☐ Wav ☐ Arr'd ☐ Admits/Denies Viol ☐ Court Finds VOP / No VOP

Prob Rein / Mod / Term'd / Revoked / Remains Revoked / Ext to

☐ Original Terms & Conditions Except as Amended herein

☐ Co-terminous with ☐ No Further Penalties / Reviews

☐ Restitution \$ general order

Count	F/M	Violation	Prison Term / Yrs	Enhancement / Priors	Yrs / Styd / Strkn	HRS / DAYS / MOS
1	F	PC 245 (a) (1)	mid. 3 years			
			PC 1202.1 (a)	3 yrs	C/S	
			PC 146.22 (b) (1) (C)	10 years	C/S	

Enhancement Yrs/S Enhancement Yrs/S Enhancement Yrs/S Enhancement Yrs/S Enhancement Yrs/S Total

CTS = 206 ACT + 31 ☐ PC4019 ☒ PC293.1 = 239 TOTAL DAYS TOTAL TERM 10 years C/S

☐ Straight time ☐ In Camp ☐ WWP ☐ PC1209 Fees ☐ Waived ☐ Court Rec ☐ All / Except ☐ EMP/PSP/WF/ERP/DRP/Co Parole/NP

☐ Sent Deemed Served ☐ Rpt to Local Parole ☒ Adv of 3 Yrs ☐ Parole/Appeal Rights ☐ Consec ☐ Conc to

☐ Bal CJ Susp ☐ All but Hrs/Days/Mos ☐ On Cond Complete Residential Treatment Prgm ☐ Serve Consec MO/TU/WE/TH/FR/SA/SU

☐ Pre-process AM/PM ☐ Stay / Surrender / Transport to @ AM/PM or Sooner

☐ REMANDED-BAIL \$ ☐ NO BAIL ☒ COMMITTED ☐ RELEASED ☐ OR ☐ SORP ☐ DOC TO CONTACT JAC FOR ASSMT ☐ P36

☐ AS COND OF SORP ☐ BAIL INCREASED / REDUCED ☐ TO PRGM AS REC BY JAC-DOC TO TRANSPORT FOR BALANCE OF JAIL ☐ UPON AVAIL BED

PROMISE TO APPEAR: I will appear at all times and places as ordered by the Court, and have read and understand all conditions set forth on the reverse side.

BY DEFENDANT

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA
SAN JOSE FACILITY
COMPLAINT FOR ARREST WARRANT(S)
NOE LEON DSJ367

THE PEOPLE OF THE STATE OF CALIFORNIA,
Plaintiff,

FELONY COMPLAINT

vs.

DA NO: 060924711

CEN

* NL WARR *

NOE LEON (9/9/1982),
506 HANNAH STREET, SAN JOSE, CA

Defendant(s)

The undersigned is informed and believes that:

COUNT 1

On or about June 4, 2005, in the County of Santa Clara, State of California, the crime of ASSAULT WITH A DEADLY WEAPON, in violation of PENAL CODE SECTION 245(a)(1), a Felony, was committed by NOE LEON who did commit an assault upon the person of Carlos Perez with a deadly weapon and instrument other than a firearm, a(n) knife.

(GBI1) It is further alleged that in the commission and attempted commission of the offense charged above, the defendant, NOE LEON, personally inflicted great bodily injury upon Carlos Perez, a person not an accomplice to the offense, within the meaning of Penal Code sections 12022.7(a) and 1203(e)(3).

(OTH) It is further alleged that the defendant, NOE LEON, committed the offense charged above for the benefit of, at the direction of, and in association with a criminal street gang, with the specific intent to promote, further, and assist in criminal conduct by gang members, within the meaning of Penal Code section 186.22(b)(1)(C).

Any defendant, including a juvenile, who is convicted of and pleads guilty and no contest to any felony offense, including any attempt to commit the offense, charged in this complaint or information is required to provide buccal swab samples, right thumbprints and a full palm print impression of each hand, and any blood specimens or other biological samples required pursuant to the DNA and Forensic Identification Database and Data Bank Act of 1998 and Penal Code section 296, et seq.

Further, attached and incorporated by reference are official reports and documents of a law enforcement agency which the complainant believes establish probable cause for the arrest of defendant NOE LEON, for the above-listed crimes. Wherefore, A WARRANT OF ARREST IS REQUESTED.

Complainant therefore requests that the defendant(s) be dealt with according to law.

I certify under penalty of perjury that the above is true and correct.

Executed on September 6, 2006, in SANTA CLARA County, California.

Warrant received for service by:

on _____
Cash or Bond \$ _____

Alfonzo 3333
(*** ***)
SJPD (408) 277-3835 051550165 G
DUFFY/ D249/ FELONY/ vp

JUDGE OF THE SUPERIOR COURT